

Maria Pushpam & Anr vs The Administrative Officer Saraswathy ... on 15 January, 2026

Author: Purushaindra Kumar Kaurav

Bench: Purushaindra Kumar Kaurav

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IN THE HIGH COURT OF DELHI AT NEW DELHI
W.P.(C) 3827/2025 & CM APPL. 17819/2025
MARIA PUSHPAM & ANR.

Through:

versus

THE ADMINISTRATIVE OFFICER SARASWATHY HOSPITAL
AND ORS

Through: Appearance not given.

CORAM:

HON'BLE MR. JUSTICE PURUSHAINDR KUMAR KAURAV
ORDER

% 15.01.2026

1. The petitioners appear to have filed certain consumer complaints before National Consumer Disputes Redressal Commission (NCDRC), alleging medical negligence against Saraswathy Hospital and treating doctors.
2. It is in the case of the petitioners that the petitioner no. 2, underwent surgery on 21.10.2017, which allegedly resulted in serious complications and 80% permanent disability.
3. Learned counsel for the petitioner submits that though, there was some delay in compliance with the directions passed by the NCDRC, however, the same was bona fide and has occurred unintentionally.
4. It is stated that the petitioners do not have any sufficient means to earn their livelihood and are unable to make the payment of the cost imposed vide orders dated 10.12.2024 and 02.05.2025.

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5. Under these circumstances, the Court grants the petitioners liberty to point out the aforesaid aspect afresh before the NCDRC, requesting for sympathetic consideration for the waiver of the cost.
6. The submission of learned counsel for the petitioners is also placed on record that petitioners shall fully cooperate with the Forum and shall not take any undue adjournments.
7. With the aforesaid observation, the petition stands disposed of.

PURUSHAINDRA KUMAR KAURAV, J JANUARY 15, 2026/SH/MJ This is a digitally signed order.

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